

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1644
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.

~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3620, Arizona Revised Statutes, is amended to
3 read:

4 13-3620. Duty to report abuse, physical injury, neglect and
5 denial or deprivation of medical or surgical care
6 or nourishment of minors; medical records;
7 exception; violation; classification; definitions

8 A. Any person who reasonably believes that a minor is or has been
9 the victim of physical injury, abuse, child abuse, a reportable offense or
10 neglect that appears to have been inflicted on the minor by other than
11 accidental means or that is not explained by the available medical history
12 as being accidental in nature or who reasonably believes there has been a
13 denial or deprivation of necessary medical treatment or surgical care or
14 nourishment with the intent to cause or allow the death of an infant who
15 is protected under section 36-2281 shall immediately report or cause
16 reports to be made of this information to a peace officer, to the
17 department of child safety or to a tribal law enforcement or social
18 services agency for any Indian minor who resides on an Indian reservation,
19 except if the report concerns a person who does not have care, custody or
20 control of the minor, the report shall be made to a peace officer only. A
21 member of the clergy, a Christian Science practitioner or a priest who has
22 received a confidential communication or a confession in that person's
23 role as a member of the clergy, as a Christian Science practitioner or as
24 a priest in the course of the discipline enjoined by the church to which
25 the member of the clergy, the Christian Science practitioner or the priest
26 belongs may withhold reporting of the communication or confession if the
27 member of the clergy, the Christian Science practitioner or the priest
28 determines that it is reasonable and necessary within the concepts of the

1 religion. This exemption applies only to the communication or confession
2 and not to personal observations the member of the clergy, the Christian
3 Science practitioner or the priest may otherwise make of the minor. For
4 the purposes of this subsection, "person" means:

5 1. Any physician, physician's assistant, optometrist, dentist,
6 osteopathic physician, chiropractor, podiatrist, behavioral health
7 professional, nurse, psychologist, counselor or social worker who develops
8 the reasonable belief in the course of treating a patient.

9 2. Any peace officer, child welfare investigator, child safety
10 worker, member of the clergy, priest or Christian Science practitioner.

11 3. The parent, stepparent or guardian of the minor.

12 4. School personnel, including substitute teachers, domestic
13 violence victim advocates or sexual assault victim advocates who develop
14 the reasonable belief in the course of their employment.

15 5. Any other person who has responsibility for the care or
16 treatment of the minor.

17 6. ANY OF THE FOLLOWING WHO ARE IN A FAMILY COURTROOM, INCLUDING
18 ANY PERSON WHO IS UNDER CONTRACT OR EMPLOYED BY ANY OF THE FOLLOWING:

19 (a) A JUDICIAL OFFICER PRESIDING OVER A FAMILY COURT MATTER.

20 (b) A MEMBER OF THE JUDICIAL OFFICER'S STAFF.

21 (c) THE CLERK OF THE COURT.

22 (d) A COURT REPORTER.

23 (e) A ~~[MARICOPA COUNTY]~~ SHERIFF'S DEPUTY.

24 ~~6.~~ 7. Any person who is employed as the immediate or next higher
25 level supervisor to or administrator of a person who is listed in
26 paragraph 1, 2, 4 or 5 of this subsection and who develops the reasonable
27 belief in the course of the supervisor's or administrator's employment,
28 except that if the supervisor or administrator reasonably believes that
29 the report has been made by a person who is required to report pursuant to
30 paragraph 1, 2, 4 or 5 of this subsection, the supervisor or administrator
31 is not required to report pursuant to this paragraph.

32 ~~7.~~ 8. Any member of a school district governing board or charter
33 school governing body.

34 B. A report is not required under this section either:

35 1. For conduct prescribed by sections 13-1404 and 13-1405 if the
36 conduct involves only minors who are fourteen, fifteen, sixteen or
37 seventeen years of age and there is nothing to indicate that the conduct
38 is other than consensual.

39 2. If a minor is of elementary school age, the physical injury
40 occurs accidentally in the course of typical playground activity during a
41 school day, occurs on the premises of the school that the minor attends
42 and is reported to the legal parent or guardian of the minor and the
43 school maintains a written record of the incident.

44 C. If a physician, psychologist or behavioral health professional
45 receives a statement from a person other than a parent, stepparent,
46 guardian or custodian of the minor during the course of providing sex
47 offender treatment that is not court ordered or that does not occur while
48 the offender is incarcerated in the state department of corrections or the

1 department of juvenile corrections, the physician, psychologist or
2 behavioral health professional may withhold the reporting of that
3 statement if the physician, psychologist or behavioral health professional
4 determines it is reasonable and necessary to accomplish the purposes of
5 the treatment.

6 D. Reports shall be made immediately either electronically or by
7 telephone. The reports shall contain the following information, if known:

8 1. The names and addresses of the minor and the minor's parents or
9 the person or persons having custody of the minor.

10 2. The minor's age and the nature and extent of the minor's abuse,
11 child abuse, physical injury or neglect, including any evidence of
12 previous abuse, child abuse, physical injury or neglect.

13 3. Any other information that the person believes might be helpful
14 in establishing the cause of the abuse, child abuse, physical injury or
15 neglect.

16 E. A health care professional who is regulated pursuant to title 32
17 and who, after a routine newborn physical assessment of a newborn infant's
18 health status or following notification of positive toxicology screens of
19 a newborn infant, reasonably believes that the newborn infant may be
20 affected by the presence of alcohol or a drug listed in section 13-3401
21 shall immediately report this information, or cause a report to be made,
22 to the department of child safety. For the purposes of this subsection,
23 "newborn infant" means a newborn infant who is under thirty days of age.

24 F. Any person other than one required to report or cause reports to
25 be made under subsection A of this section who reasonably believes that a
26 minor is or has been a victim of abuse, child abuse, physical injury, a
27 reportable offense or neglect may report the information to a peace
28 officer or to the department of child safety, except if the report
29 concerns a person who does not have care, custody or control of the minor,
30 the report shall be made to a peace officer only.

31 G. A person who has custody or control of medical records of a
32 minor for whom a report is required or authorized under this section shall
33 make the records, or a copy of the records, available to a peace officer,
34 child welfare investigator or child safety worker investigating the
35 minor's neglect, child abuse, physical injury or abuse on written request
36 for the records signed by the peace officer, child welfare investigator or
37 child safety worker. Records disclosed pursuant to this subsection are
38 confidential and may be used only in a judicial or administrative
39 proceeding or investigation resulting from a report required or authorized
40 under this section.

41 H. When a report is received:

42 1. By a peace officer, the officer shall immediately notify the
43 department of child safety.

44 2. Notwithstanding any other statute, by the department OF CHILD
45 SAFETY, the department shall immediately notify a peace officer in the
46 appropriate jurisdiction.

47 3. By a school resource officer or school safety officer, the
48 officer shall immediately notify a law enforcement agency in the

1 appropriate jurisdiction and shall submit to the local law enforcement
2 agency all information relating to the report for the purposes of the law
3 enforcement agency investigating the reported conduct.

4 I. Any person who is required to receive reports pursuant to
5 subsection A of this section may take or cause to be taken photographs of
6 the minor and the vicinity involved. Forensic interviews or medical
7 examinations, or both, of the involved minor may be performed.

8 J. A person who furnishes a report, information or records required
9 or authorized under this section, or a person who participates in a
10 judicial or administrative proceeding or investigation resulting from a
11 report, information or records required or authorized under this section,
12 is immune from any civil or criminal liability by reason of that action
13 unless the person acted with malice or unless the person has been charged
14 with or is suspected of abusing or neglecting the child or children in
15 question.

16 K. Except for the attorney client privilege or the privilege under
17 subsection L of this section, no privilege applies to any:

18 1. Civil or criminal litigation or administrative proceeding in
19 which a minor's neglect, dependency, abuse, child abuse, physical injury
20 or abandonment is an issue.

21 2. Judicial or administrative proceeding resulting from a report,
22 information or records submitted pursuant to this section.

23 3. Investigation of a minor's child abuse, physical injury, neglect
24 or abuse conducted by a peace officer or the department of child safety.

25 L. In any civil or criminal litigation in which a child's neglect,
26 dependency, physical injury, abuse, child abuse or abandonment is an
27 issue, a member of the clergy, a Christian Science practitioner or a
28 priest shall not, without his consent, be examined as a witness concerning
29 any confession made to him in his role as a member of the clergy, a
30 Christian Science practitioner or a priest in the course of the discipline
31 enjoined by the church to which he belongs. This subsection does not
32 discharge a member of the clergy, a Christian Science practitioner or a
33 priest from the duty to report pursuant to subsection A of this section.

34 M. If psychiatric records are requested pursuant to subsection G of
35 this section, the custodian of the records shall notify the attending
36 psychiatrist, who may excise from the records, before they are made
37 available:

38 1. Personal information about individuals other than the patient.

39 2. Information regarding specific diagnosis or treatment of a
40 psychiatric condition, if the attending psychiatrist certifies in writing
41 that release of the information would be detrimental to the patient's
42 health or treatment.

43 N. If any portion of a psychiatric record is excised pursuant to
44 subsection M of this section, a court, on application of a peace officer,
45 child welfare investigator or child safety worker, may order that the
46 entire record or any portion of the record that contains information
47 relevant to the reported abuse, child abuse, physical injury or neglect be
48 made available to the peace officer, child welfare investigator or child

1 safety worker investigating the abuse, child abuse, physical injury or
2 neglect.

3 0. A student who is identified as a potential victim of a
4 reportable offense may be interviewed only as provided by the local county
5 protocol that is adopted pursuant to section 8-817. This subsection does
6 not prevent a school resource officer or a school safety officer from
7 either:

8 1. Receiving a voluntary report of a reportable offense from a
9 student who is an alleged victim.

10 2. Asking a student minimal follow-up questions that are necessary
11 and authorized by the county protocol.

12 P. A report to a school resource officer or a school safety officer
13 does not satisfy the reporting requirement prescribed by this section.

14 Q. A person who violates this section is guilty of a class 1
15 misdemeanor, except if the failure to report involves a reportable
16 offense, the person is guilty of a class 6 felony.

17 R. For the purposes of this section:

18 1. "Abuse" has the same meaning prescribed in section 8-201.

19 2. "Child abuse" means child abuse pursuant to section 13-3623.

20 3. "Neglect" has the same meaning prescribed in section 8-201.

21 4. "Reportable offense" means any of the following:

22 (a) Any offense listed in chapters 14 and 35.1 of this title or
23 section 13-3506.

24 (b) Surreptitious photographing, videotaping, filming or digitally
25 recording or viewing a minor pursuant to section 13-3019.

26 (c) Child sex trafficking pursuant to section 13-3212.

27 (d) Incest pursuant to section 13-3608.

28 (e) Unlawful mutilation pursuant to section 13-1214.

29 5. "School safety officer" has the same meaning prescribed in
30 section 15-514.

31 6. "Student" means a student who is enrolled in a kindergarten
32 program or any of grades one through twelve.

33 Enroll and engross to conform

34 Amend title to conform

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